CPE416

CPE Laws & Professional Practice

Engr. Joel C. Ananias



Electronics Engineering Law of 2004

Republic Act No. 9292, also known as the Electronics Engineering Law of 2004, provides a comprehensive framework for the regulation, registration, and licensing of Professional Electronics Engineers, Electronics Engineers, and Electronics Technicians in the Philippines12. Here are some key points:

Penalties and Enforcement:
Specifies penalties for violations of the law, including practicing without a license or engaging in unethical practices.

Section 35. Penal Provision. - The following shall be punished by a fine of not less than One hundred thousand pesos (P100,000.00) nor more than One million pesos (P1,000,000.00), or by imprisonment of not less than six (6) months nor more than six (6) years, or both, in the discretion of the court:

(a) Any person who shall give any false or fraudulent statement to the Board to obtain a Certificate of Registration and/or Professional Identification Card as Professional Electronics Engineer, Electronics Engineer or Electronics Technician;

(b) Any person who shall present or use as his/her own a Certificate of Registration, Professional Identification Card, membership identification card in the Accredited Professional Organization and/or seal issued to another and any person who allows the use of his/her Certificate of Registration, Professional Identification Card, membership card in the Accredited Professional Organization and/or seal;

(c) Any person who shall present or use a revoked or suspended Certificate of Registration as Professional Electronics Engineer, Electronics Engineer or Electronics Technician;

(d) Any person who shall assume, use, advertise or otherwise practice as Professional Electronics Engineer, Electronics Engineer or Electronics Technician, or append to his/her name, any letter/s or words tending to convey the impression that he/she is a registered Professional Electronics Engineer, Electronics Engineer or Electronics Technician, when in fact he/she is not duly registered with the Board as such;

(e) Any Professional Electronics Engineer, or any person on his/her behalf, who shall stamp or seal any document with his/her seal as such after his/her Certificate of Registration, Professional Identification Card and membership card in the Accredited Professional Organization has been revoked or suspended or after he/she has been suspended from practice or removed from the roster of Professional Electronics Engineer, Electronics Engineers or Electronics Technicians;

(f) Any Professional Electronics Engineer who shall sign his/her name, affix his/her seal, or use any other method of signature on plans, technical descriptions or other documents prepared by or under the supervision of another Professional Electronics Engineer, unless the same is prepared in such manner as to clearly indicate the part of such work actually performed by the former;

(g) Any person, except the Professional Electronics Engineer or Electronics Engineer in-charge, who shall sign for any electronics engineering work, or any function of electronics engineering practice, not actually performed by him/her;



Data Privacy Act of 2012

Chapter VIII. Penalties.

R.A NO. 10173

SEC. 25. Unauthorized Processing of Personal Information and Sensitive Personal Information.
(a) The unauthorized processing of personal information shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who process personal information without the consent of the data subject, or without being authorized under this Act or any existing law.
(b) The unauthorized processing of personal sensitive information shall be penalized by imprisonment ranging from three (3) years to six (6) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Four million pesos (Php4,000,000.00) shall be imposed on persons who process personal information without the consent of the data subject, or without being authorized under this Act or any existing law.
SEC. 26. Accessing Personal Information and Sensitive Personal Information Due to Negligence.
(a) Accessing personal information due to negligence shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who, due to negligence, provided access to personal information without being authorized under this Act or any existing law.
(b) Accessing sensitive personal information due to negligence shall be penalized by imprisonment ranging from three (3) years to six (6) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Four million pesos (Php4,000,000.00) shall be imposed on persons who, due to negligence, provided access to personal information without being authorized under this Act or any existing law.

SEC. 27. Improper Disposal of Personal Information and Sensitive Personal Information.
(a) The improper disposal of personal information shall be penalized by imprisonment ranging from six (6) months to two (2) years and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than Five hundred thousand pesos (Php500,000.00) shall be imposed on persons who knowingly or negligently dispose, discard or abandon the personal information of an individual in an area accessible to the public or has otherwise placed the personal information of an individual in its container for trash collection.

(b) The improper disposal of sensitive personal information shall be penalized by imprisonment ranging from one (1) year to three (3) years and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than One million pesos (Php1,000,000.00) shall be imposed on persons who knowingly or negligently dispose, discard or abandon the personal information of an individual in an area accessible to the public or has otherwise placed the personal information of an individual in its container for trash collection.

SEC. 28. Processing of Personal Information and Sensitive Personal Information for Unauthorized Purposes. The processing of personal information for unauthorized purposes shall be penalized by imprisonment ranging from one (1) year and six (6) months to five (5) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than One million pesos (Php1,000,000.00) shall be imposed on persons processing personal information for purposes not authorized by the data subject, or otherwise authorized under this Act or under existing laws.

SEC. 29. Unauthorized Access or Intentional Breach. The penalty of imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who knowingly and unlawfully, or violating data confidentiality and security data systems, breaks in any way into any system where personal and sensitive personal information is stored.



CyberCrime Prevention Act of 2012 Penalties.

Any person found guilty of any of the punishable acts enumerated in Sections 4(a) and 4(b) of this Act shall be punished with imprisonment of prison mayor or a fine of at least Two hundred thousand pesos (PhP200,000.00) up to a maximum amount commensurate to the damage incurred or both.

•Any person found guilty of the punishable act under Section 4(a)(5) shall be punished with imprisonment of prision mayor or a fine of not more than Five hundred thousand pesos (PhP500,000.00) or both.

•If punishable acts in Section 4(a) are committed against critical infrastructure, the penalty of reclusion temporal or a fine of at least Five hundred thousand pesos (PhP500,000.00) up to maximum amount commensurate to the damage incurred or both, shall be imposed.

•Any person found guilty of any of the punishable acts enumerated in Section 4(c)(1) of this Act shall be punished with imprisonment of prision mayor or a fine of at least Two hundred thousand pesos (PhP200,000.00) but not exceeding One million pesos (PhP1,000,000.00) or both.

•Any person found guilty of any of the punishable acts enumerated in Section 4(c)(2) of this Act shall be punished with the penalties as enumerated in Republic Act No. 9775 or the "Anti-Child Pornography Act of 2009": Provided, That the penalty to be imposed shall be one (1) degree higher than that provided for in Republic Act No. 9775, if committed through a computer system.

•Any person found guilty of any of the punishable acts enumerated in Section 4(c)(3) shall be punished with imprisonment of arresto mayor or a fine of at least Fifty thousand pesos (PhP50,000.00) but not exceeding Two hundred fifty thousand pesos (PhP250,000.00) or both.

•Any person found guilty of any of the punishable acts enumerated in Section 5 shall be punished with imprisonment one (1) degree lower than that of the prescribed penalty for the offense or a fine of at least One hundred thousand pesos (PhP100,000.00) but not exceeding Five hundred thousand pesos (PhP500,000.00) or both.



Intelectual Property Code of the Philippines Section 217. Criminal Penalties.

R.A NO. 8298

•Any person infringing any right secured by provisions of Part IV of this Act or aiding or shetting such mfringement shall be guilty of a crime punishable by
•Imprisonsent of one (1) year to three (3) years plus a fine ranging from Fifty thousand pesos (P50,000) to One hundred fifty thousand pesos (P150,000) for the first offense.
•Imprisonment of three (1) years and one (1) day to six (6) years plus a fine ranging from One hundred fifty thousand pesos (P150,000) to Five hundred thousand pesos (P500,000) for the second offense.
•Imprisonment of six (6) years and one (1) day to nine (9) years plus a fine ranging from five hundred thousand pesos (P500,000) to One million five hundred thousand pesos (P1,500,000) for the third and subsequent offenses.
•In all cases, subsidiary imprisonment in cases of insolvency.



Magna Carta for Scientists, Engineers, Researchers, and other S&T Personnel in the Government

R.A NO. 8439

Any person who discriminates against scientists, engineers, researchers, and other S&T personnel in terms of hiring, promotion, or benefits shall be punished with a fine of not less than Fifty thousand pesos (₱50,000.00) and imprisonment of six (6) months to one (1) year.

• Any violation of the employment rights and benefits guaranteed under this Act shall incur a penalty of a fine of not less than One hundred thousand pesos (₱100,000.00) and imprisonment of six (6) months to three (3) years.

• Any government official or employee found guilty of misusing funds allocated for scientific and technological activities shall be punished with a fine of not less than Two hundred thousand pesos (₱200,000.00) and imprisonment of one (1) year to five (5) years.

•Individuals or entities found guilty of repeated offenses shall face enhanced penalties, including increased fines and longer terms of imprisonment.

E-Commerce Law
(Electronic Commerce Act)

R.A NO. 8798

Section 33. Penalties.

The following Acts shall be penalized by fine and/or imprisonment, as follows:

• Hacking or cracking which refers to unauthorized access into or interference in a computer system/server or information and communication system; or any access in order to corrupt, alter, steal, or destroy using a computer or other similar information and communication devices, without the knowledge and consent of the owner of the computer or information and communication system, including the introduction of computer viruses and the like, resulting in the corruption, destruction, alteration, theft or loss of electronic data messages or electronic documents shall be punished by a minimum fine of One hundred thousand pesos (P100,000.00) and a maximum commensurate to the damage incurred and a mandatory imprisonment of six (6) months to three (3) years;

• Piracy or the unauthorized copying, reproduction, dissemination, distribution, importation, use, removal, alteration, substitution, modification, storage, uploading, downloading, communication, making available to the public, or broadcasting of protected material, electronic signature or copyrighted works including legally protected sound recordings or phonograms or information material on protected works, through the use of telecommunication networks, such as, but not limited to, the internet, in a manner that infringes intellectual property rights shall be punished by a minimum fine of One hundred thousand pesos (P100,000.00) and a maximum commensurate to the damage incurred and a mandatory imprisonment of six (6) months to three (3) years;

• Violations of the Consumer Act or Republic Act No. 7394 and other relevant or pertinent laws through transactions covered by or using electronic data messages or electronic documents, shall be penalized with the same penalties as provided in those laws;

• Other violations of the provisions of this Act, shall be penalized with a maximum penalty of One million pesos (P1,000,000.00) or six (6) years imprisonment.



Optical Media Act of 2003

Section 18. Penalties.

RA 10844: Department of Information and Communications Technology Act of 2015
Section 16. Penalties.

• Any person who accesses a computer or information system without authority shall be punished with a fine of not less than One hundred thousand pesos (₱100,000.00) and imprisonment of six (6) months to three (3) years.

• Any person or entity that violates the provisions on data protection resulting in unauthorized access or breach of data shall be subject to a fine of not less than Two hundred thousand pesos (₱200,000.00) and imprisonment of one (1) year to five (5) years.

• The distribution of malicious software or code designed to harm or exploit computer systems shall incur a penalty of a fine ranging from One hundred thousand pesos (₱100,000.00) to One million pesos (₱1,000,000.00) and imprisonment of one (1) year to six (6) years.

• Failure to comply with licensing requirements set forth in the Act shall result in a fine ranging from Fifty thousand pesos (₱50,000.00) to Five hundred thousand pesos (₱500,000.00) and imprisonment of six (6) months to one (1) year.

• Individuals or entities found guilty of repeated offenses shall face enhanced penalties, including increased fines and longer terms of imprisonment.



Department of Information and Communications Technology Act of 2015

Section 16. Penalties.

Any person who accesses a computer or information system without authority shall be punished with a fine of not less than (₱100,000.00) and imprisonment of (6) months to three (3) years.. Any person or entity that violates the provisions on data protection resulting in unauthorized access or breach of data shall be subject to a fine of not less than (₱200,000.00) and imprisonment of one (1) year to five (5) years.

• The distribution of malicious software or code designed to harm or exploit computer systems shall incur a penalty of a fine ranging from One hundred thousand pesos (₱100,000.00) to One million pesos (and imprisonment of one (1) year to six (6) years.

• Failure to comply with licensing requirements set forth in the Act shall result in a fine ranging from(₱50,000.00) to Five hundred thousand pesos (₱500,000.00) and imprisonment of six (6) months to one (1) year.. Individuals or entities found guilty of repeated offenses shall face enhanced penalties, including increased fines and longer terms of imprisonment.